

Deemed renewal where no notice

38 (1) If a tenancy agreement for a fixed term ends and has not been renewed or terminated, the landlord and tenant shall be deemed to have renewed it as a monthly tenancy agreement containing the same terms and conditions that are in the expired tenancy agreement and subject to any increases in rent charged in accordance with this Act. 2006, c. 17, s. 38 (1).

Same

(2) If the period of a daily, weekly or monthly tenancy ends and the tenancy has not been renewed or terminated, the landlord and tenant shall be deemed to have renewed it for another day, week or month, as the case may be, with the same terms and conditions that are in the expired tenancy agreement and subject to any increases in rent charged in accordance with this Act. 2006, c. 17, s. 38 (2).

Same

(3) If the period of a periodic tenancy ends, the tenancy has not been renewed or terminated and subsection (2) does not apply, the landlord and tenant shall be deemed to have renewed it as a monthly tenancy, with the same terms and conditions that are in the expired tenancy agreement and subject to any increases in rent charged in accordance with this Act. 2006, c. 17, s. 38 (3).

Restriction on recovery of possession

39 A landlord shall not recover possession of a rental unit subject to a tenancy unless,

- (a) the tenant has vacated or abandoned the unit; or
- (b) an order of the Board evicting the tenant has authorized the possession.

2006, c. 17, s. 39.

Distress abolished

40 No landlord shall, without legal process, seize a tenant's property for default in the payment of rent or for the breach of any other obligation of the tenant. 2006, c. 17, s. 40.

Disposal of abandoned property if unit vacated

41 (1) A landlord may sell, retain for the landlord's own use or otherwise dispose of property in a rental unit or the residential complex if the rental unit has been vacated in accordance with,

- (a) a notice of termination of the landlord or the tenant;
- (b) an agreement between the landlord and the tenant to terminate the tenancy;
- (c) subsection 93 (2); or
- (d) an order of the Board terminating the tenancy or evicting the tenant. 2006, c. 17, s. 41 (1).

Where eviction order enforced

(2) Despite subsection (1), where an order is made to evict a tenant, the landlord shall not sell, retain or otherwise dispose of the tenant's property before 72 hours have elapsed after the enforcement of the eviction order. 2006, c. 17, s. 41 (2).

Same

(3) A landlord shall make an evicted tenant's property available to be retrieved at a location close to the rental unit during the prescribed hours within the 72 hours after the enforcement of an eviction order. 2006, c. 17, s. 41 (3).

Liability of landlord

(4) A landlord is not liable to any person for selling, retaining or otherwise disposing of a tenant's property in accordance with this section. 2006, c. 17, s. 41 (4).

Agreement

(5) A landlord and a tenant may agree to terms other than those set out in this section with regard to the disposal of the tenant's property. 2006, c. 17, s. 41 (5).

Enforcement of landlord obligations

(6) If, on application by a former tenant, the Board determines that a landlord has breached an obligation under subsection (2) or (3), the Board may do one or more of the following:

1. Order that the landlord not breach the obligation again.
2. Order that the landlord return to the former tenant property of the former

tenant that is in the possession or control of the landlord.

3. Order that the landlord pay a specified sum to the former tenant for,
 - i. the reasonable costs that the former tenant has incurred or will incur in repairing or, where repairing is not reasonable, replacing property of the former tenant that was damaged, destroyed or disposed of as a result of the landlord's breach, and
 - ii. other reasonable out-of-pocket expenses that the former tenant has incurred or will incur as a result of the landlord's breach.
4. Order that the landlord pay to the Board an administrative fine not exceeding the greater of \$10,000 and the monetary jurisdiction of the Small Claims Court.
5. Make any other order that it considers appropriate. 2006, c. 17, s. 41 (6).

Disposal of property, unit abandoned

42 (1) A landlord may dispose of property in a rental unit that a tenant has abandoned and property of persons occupying the rental unit that is in the residential complex in which the rental unit is located in accordance with subsections (2) and (3) if,

- (a) the landlord obtains an order terminating the tenancy under section 79; or
- (b) the landlord gives notice to the tenant of the rental unit and to the Board of the landlord's intention to dispose of the property. 2006, c. 17, s. 42 (1).

Same

(2) If the tenant has abandoned the rental unit, the landlord may dispose of any unsafe or unhygienic items immediately. 2006, c. 17, s. 42 (2).

Same

(3) The landlord may sell, retain for the landlord's own use or otherwise dispose of any other items if 30 days have passed after obtaining the order referred to in clause (1) (a) or giving the notice referred to in clause (1) (b) to the tenant and the Board. 2006, c. 17, s. 42 (3).

Tenant's claim to property

(4) If, before the 30 days have passed, the tenant notifies the landlord that he or she intends to remove property referred to in subsection (3), the tenant may remove the property within that 30-day period. 2006, c. 17, s. 42 (4).

Same

(5) If the tenant notifies the landlord in accordance with subsection (4) that he or she intends to remove the property, the landlord shall make the property available to the tenant at a reasonable time and at a location close to the rental unit. 2006, c. 17, s. 42 (5).

Same

(6) The landlord may require the tenant to pay the landlord for arrears of rent and any reasonable out-of-pocket expenses incurred by the landlord in moving, storing or securing the tenant's property before allowing the tenant to remove the property. 2006, c. 17, s. 42 (6).

Same

(7) If, within six months after the date the notice referred to in clause (1) (b) is given to the tenant and the Board or the order terminating the tenancy is issued, the tenant claims any of his or her property that the landlord has sold, the landlord shall pay to the tenant the amount by which the proceeds of sale exceed the sum of,

(a) the landlord's reasonable out-of-pocket expenses for moving, storing, securing or selling the property; and

(b) any arrears of rent. 2006, c. 17, s. 42 (7).

No liability

(8) Subject to subsections (5) and (7), a landlord is not liable to any person for selling, retaining or otherwise disposing of the property of a tenant in accordance with this section. 2006, c. 17, s. 42 (8).

NOTICE OF TERMINATION – GENERAL

Notice of termination

43 (1) Where this Act permits a landlord or tenant to give a notice of termination, the

notice shall be in a form approved by the Board and shall,

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 43 (1) of the Act is amended by striking out the portion before clause (a) and substituting the following: (See: 2025, c. 14, Sched. 12, s. 1)

Notice of termination

(1) Where this Act permits a landlord or tenant to give a notice of termination, the notice shall be in a form approved by the Board, unless the form of the notice is prescribed in which case the notice shall be in the prescribed form, and shall,

- (a) identify the rental unit for which the notice is given;
- (b) state the date on which the tenancy is to terminate; and
- (c) be signed by the person giving the notice, or the person's agent. 2006, c. 17, s. 43 (1).

Same

(2) If the notice is given by a landlord, it shall also set out the reasons and details respecting the termination and inform the tenant that,

- (a) if the tenant vacates the rental unit in accordance with the notice, the tenancy terminates on the date set out in clause (1) (b);
- (b) if the tenant does not vacate the rental unit, the landlord may apply to the Board for an order terminating the tenancy and evicting the tenant; and
- (c) if the landlord applies for an order, the tenant is entitled to dispute the application. 2006, c. 17, s. 43 (2).

▼ Section Amendments with date in force (d/m/y)

Period of notice

Period of notice, daily or weekly tenancy

44 (1) A notice under section 47, 58 or 144 to terminate a daily or weekly tenancy shall be given at least 28 days before the date the termination is specified to be effective and that date shall be on the last day of a rental period. 2006, c. 17, s. 44 (1).

Period of notice, monthly tenancy

(2) A notice under section 47, 58 or 144 to terminate a monthly tenancy shall be given at least 60 days before the date the termination is specified to be effective and that date shall be on the last day of a rental period. 2006, c. 17, s. 44 (2).

Period of notice, yearly tenancy

(3) A notice under section 47, 58 or 144 to terminate a yearly tenancy shall be given at least 60 days before the date the termination is specified to be effective and that date shall be on the last day of a yearly period on which the tenancy is based. 2006, c. 17, s. 44 (3).

Period of notice, tenancy for fixed term

(4) A notice under section 47, 58 or 144 to terminate a tenancy for a fixed term shall be given at least 60 days before the expiration date specified in the tenancy agreement, to be effective on that expiration date. 2006, c. 17, s. 44 (4).

Period of notice, February notices

(5) A tenant who gives notice under subsection (2), (3) or (4) which specifies that the termination is to be effective on the last day of February or the last day of March in any year shall be deemed to have given at least 60 days notice of termination if the notice is given not later than January 1 of that year in respect of a termination which is to be effective on the last day of February, or February 1 of that year in respect of a termination which is to be effective on the last day of March. 2006, c. 17, s. 44 (5).

Effect of payment

45 Unless a landlord and tenant agree otherwise, the landlord does not waive a notice of termination, reinstate a tenancy or create a new tenancy,

- (a) by giving the tenant a notice of rent increase; or
- (b) by accepting arrears of rent or compensation for the use or occupation of a rental unit after,
 - (i) the landlord or the tenant gives a notice of termination of the tenancy,
 - (ii) the landlord and the tenant enter into an agreement to terminate the tenancy, or

(iii) the Board makes an eviction order or an order terminating the tenancy.
2006, c. 17, s. 45.

Where notice void

46 (1) A notice of termination becomes void 30 days after the termination date specified in the notice unless,

- (a) the tenant vacates the rental unit before that time; or
- (b) the landlord applies for an order terminating the tenancy and evicting the tenant before that time. 2006, c. 17, s. 46 (1).

Exception

(2) Subsection (1) does not apply with respect to a notice based on a tenant's failure to pay rent. 2006, c. 17, s. 46 (2).

NOTICE BY TENANT

Tenant's notice to terminate, end of period or term

47 A tenant may terminate a tenancy at the end of a period of the tenancy or at the end of the term of a tenancy for a fixed term by giving notice of termination to the landlord in accordance with section 44. 2006, c. 17, s. 47.

NOTICE BY TENANT BEFORE END OF YEARLY PERIOD OR FIXED TERM OF TENANCY REFERRED TO IN SUBS. 12.1
(1)

Notice to terminate before end of period or term, tenancy referred to in subs. 12.1 (1)

47.0.1 (1) Despite subsections 44 (3) and (4) and section 47, a tenant may terminate a tenancy referred to in subsection 12.1 (1) that is a yearly tenancy or a tenancy for a fixed term by giving notice of termination to the landlord in accordance with this section if,

- (a) the tenant has made a demand for a proposed tenancy agreement under subsection 12.1 (5) in respect of the tenancy; and
- (b) either one of the following applies,
 - (i) at least 21 days have elapsed since the day the tenant made the demand

and the landlord has not complied with the demand, or

(ii) the landlord has complied with the demand and the tenant has not entered into the proposed tenancy agreement provided to the tenant by the landlord. 2017, c. 13, s. 6.

Limitation

(2) A tenant may give a notice under subsection (1) no later than 30 days after the day the landlord has provided the proposed tenancy agreement to the tenant. 2017, c. 13, s. 6.

Period of notice

(3) A notice under subsection (1) to terminate a yearly tenancy or a tenancy for a fixed term shall be given at least 60 days before the date the termination is specified to be effective and that date shall be on the last day of a rental period of the tenancy. 2017, c. 13, s. 6.

Form of notice

(4) A notice under subsection (1) shall comply with subsection 43 (1). 2017, c. 13, s. 6.

Application of subs. 44 (5)

(5) Subsection 44 (5) applies with necessary modifications with respect to a notice given under subsection (1). 2017, c. 13, s. 6.

▼ Section Amendments with date in force (d/m/y)

NOTICE BY TENANT BEFORE END OF PERIOD OR TERM, TENANT OR CHILD DEEMED TO HAVE EXPERIENCED
VIOLENCE OR ANOTHER FORM OF ABUSE

Notice to terminate tenancy, before end of period or term

47.1 (1) Despite subsections 44 (2) to (4) and section 47, a tenant may terminate a monthly or yearly tenancy or a tenancy for a fixed term by giving notice of termination to the landlord in accordance with this section if,

(a) the tenant is deemed under subsection 47.3 (1) to have experienced violence or another form of abuse; or

(b) a child residing with the tenant is deemed under subsection 47.3 (1) to have experienced violence or another form of abuse. 2016, c. 2, Sched. 6, s. 1.

Same, joint tenants

(2) A joint tenant who meets the requirement in clause (1) (a) or (b) may,

(a) give a notice of termination of the tenancy under subsection (1), provided the notice is given jointly with all the other joint tenants; or

(b) give a notice of termination of his or her interest in the tenancy under subsection 47.2 (1). 2016, c. 2, Sched. 6, s. 1.

Period of notice

(3) A notice under subsection (1) shall be given at least 28 days before the date the termination is specified to be effective. 2016, c. 2, Sched. 6, s. 1.

Form and contents of notice

(4) A notice under subsection (1) shall,

(a) comply with subsection 43 (1); and

(b) be accompanied by,

(i) a copy of an order described in clause 47.3 (1) (a), (b) or (c) and issued not more than 90 days before the date the notice is given, or

(ii) a statement referred to in clause 47.3 (1) (d), (e) or (f). 2016, c. 2, Sched. 6, s. 1.

Entry to show unit to prospective tenants under s. 26 (3)

(5) The landlord to whom a notice is given with respect to a rental unit under subsection (1) may enter the unit in accordance with subsection 26 (3) only after the tenant or all the joint tenants, as applicable, have vacated the unit in accordance with the notice and, for that purpose, clause 26 (3) (c) does not apply. 2016, c. 2, Sched. 6, s. 1.

▼ Section Amendments with date in force (d/m/y)

Notice to terminate interest in joint tenancy

47.2 (1) A joint tenant may terminate his or her interest in a monthly or yearly tenancy or in a tenancy for a fixed term by giving notice of termination to the landlord in accordance with this section if,

- (a) the tenant is deemed under subsection 47.3 (1) to have experienced violence or another form of abuse; or
- (b) a child residing with the tenant is deemed under subsection 47.3 (1) to have experienced violence or another form of abuse. 2016, c. 2, Sched. 6, s. 1.

Notice given by some of the joint tenants

(2) A joint tenant who meets the requirement in clause (1) (a) or (b) may give a notice under subsection (1),

- (a) either solely; or
- (b) jointly with some but not all of the other joint tenants. 2016, c. 2, Sched. 6, s. 1.

Period of notice

(3) A notice under subsection (1) shall be given at least 28 days before the date the termination is specified to be effective. 2016, c. 2, Sched. 6, s. 1.

Form and contents of notice

(4) A notice under subsection (1) shall,

- (a) be in a form approved by the Board;
- (b) identify the rental unit for which the notice is given;
- (c) state the date on which the interest in the tenancy is to terminate;
- (d) be signed by the tenant or tenants giving the notice, or their agent; and
- (e) be accompanied by,
 - (i) a copy of an order described in clause 47.3 (1) (a), (b) or (c) and issued not more than 90 days before the date the notice is given, or
 - (ii) a statement referred to in clause 47.3 (1) (d), (e) or (f). 2016, c. 2, Sched. 6, s. 1.